



Malta Republic Act 1975

1975 CHAPTER 31

An Act to make provision as to the operation of the law in relation to Malta as a republic within the Commonwealth. [8th May 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Operation of
existing law.

1.—(1) Subject to subsection (3) below, all law to which this section applies, whether being a rule of law or a provision of an Act of Parliament or of any other enactment or instrument whatsoever, which was in force on 13th December 1974, or, having been passed or made before that date, comes or has come into force thereafter, shall, unless and until provision to the contrary is made by Parliament or some other authority having power in that behalf, have the same operation in relation to Malta, and persons and things belonging to or connected with Malta, as it would have had apart from this subsection if Malta had not become a republic.

(2) This section applies to law of, or any part of, the United Kingdom, the Channel Islands and the Isle of Man and, in relation only to any enactment of the Parliament of the United Kingdom or any Order in Council made by virtue of any such enactment whereby any such enactment applies in relation to Malta, to law of any other country or territory to which that enactment or Order extends.

(3) Notwithstanding anything in subsections (1) and (2) above, the provisions set out in Appendix C to Schedule 1 to the Immigration Act 1971 (whereby a person becoming a citizen of

the United Kingdom and Colonies by registration is in certain circumstances required to take an oath of allegiance) shall have effect in relation to citizens of Malta as if subsection (1) above had not been enacted.

(4) This section shall be deemed to have had effect from 13th December 1974.

2. This Act may be cited as the Malta Republic Act 1975. Short title.